

****April 12, 2024****

****Sanction for Violation of GDPR****

The National Authority for the Supervision of Personal Data Processing has completed an investigation in April 2024 at the operator Medical Center Dr. Furtună Dan, during which it found violations of the provisions of Article 58 paragraph (2) and Article 83 paragraph (5) letter e) and paragraph (6) of Regulation (EU) 2016/679 (GDPR), as well as of Article 5 paragraph (1) letter f) correlated with those of Article 5 paragraph (2) and Article 24 of the GDPR.

As such, the operator was sanctioned with a fine of 7,455 lei, equivalent to 1,500 EURO for the contravention provided for in Article 83 paragraph (5) letter e) and paragraph (6) of the GDPR, as well as with a warning for the violation of the provisions of Article 5 paragraph (1) letter f) correlated with those of Article 5 paragraph (2) and Article 24 of the GDPR.

The investigation was initiated because the operator did not provide the National Authority for the Supervision with evidence regarding the compliance with the corrective measures from the minutes through which our institution sanctioned this operator.

During the investigation, it was found that the Medical Center Dr. Furtună Dan did not comply with the corrective measure ordered by the minutes of finding/sanctioning, based on Article 58 paragraph (2) letter d) of the GDPR, thus violating the provisions of Article 58 paragraph (2), Article 83 paragraph (5) letter e) and paragraph (6) of the GDPR.

Furthermore, the National Authority for the Supervision found that the operator violated the provisions of Article 5 paragraph (1) letter f) correlated with those of Article 5 paragraph (2) and Article 24 of the GDPR as it did not take sufficient organizational measures to ensure that the data is processed in a manner that guarantees its adequate security.

At the same time, a corrective measure was ordered for the operator to review and update the technical and organizational measures implemented as a result of the assessment regarding the risk to the rights and freedoms of individuals, including the working procedures related to the protection of personal data. Additionally, it was ordered to create a register regarding all cases of personal data security breaches, which should include a description of the factual situation in which the personal data security breach occurred, its effects, and the remedial measures taken, in accordance with Article 33 paragraph (5) of the GDPR.

****Legal and Communication Directorate****

****N.A.S.P.D.C.P****